

Judgment Sheet
IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

Writ Petition No.56545 of 2025

Muhammad Irshad and 34 others

Versus

Government of Punjab through Chief Secretary and 03
others.

J U D G M E N T

Date of Hearing	09.10.2025
For the petitioners	Mr. Muhammad Ahmad Akram, Advocate in W.P. Nos.56545-25 and 58260-25. Mr. Moeen Yousaf Hanjra, Advocate in W.P. No.57997-25.
For the respondents	Mr. Mohammad Osman Khan, Assistant Advocate General, Punjab with Saad Ali, Law Officer Punjab Public Service Commission and Malik Khuda Yar, Inspector (Legal), I.G. Office, Lahore.

Raheel Kamran, J.:- By this single judgment, I intend to decide the titled petition as well as Writ Petition Nos.57997 of 2025 and 58260 of 2025 as all these petitions raise the same legal issue.

2. The petitioners through these petitions filed under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (the Constitution) are aggrieved by the non-provision of a general five-year age relaxation for recruitment for the post of Sub-Inspector BS-14 (open merit), as advertised by the Punjab Public Service Commission (PPSC) through its Consolidated Advertisement No.36/2025 (hereinafter referred to as “the impugned advertisement”).

3. The primary contention advanced by the learned counsel for the petitioners is that the impugned advertisement arbitrarily fixes the upper age limit for open merit candidates at 25 years, with an explicit stipulation that no age relaxation will be granted. Learned counsel adds that application of the Punjab Civil Servants Recruitment (Relaxation of Upper Age) Rules, 1976 has been unlawfully excluded and such exclusion creates a discriminatory situation, particularly when compared to the 35-year upper age limit for candidates applying under the service quota, who were granted further relaxation of five years in a previous recruitment cycle (Consolidated Advertisement No.31/2024).

4. The learned Assistant Advocate General, Punjab, has filed report and parawise comments on behalf of respondents No.3 and 4. He submits that the determination of the upper age limit for recruitment in the police department is the exclusive statutory prerogative of the Inspector General of Police, Punjab, under Article 112 of the Police Order, 2002. It is further emphasized that the general age relaxation rules applicable to civil servants have intentionally and consistently excluded the police force from their purview. He distinguishes between fresh candidates and in-service personnel, arguing that the latter possess departmental training and experience, justifying a different age criterion. He clarifies that prior relaxation granted to service quota candidates was a one-time measure sanctioned by the provincial cabinet and does not set a precedent. He emphasizes that the petitioners' plea of discrimination is legally untenable as it attempts to draw a parallel between two fundamentally distinct and dissimilarly situated classes of applicants: fresh aspirants and serving police officials. To substantiate his contentions, the learned Law Officer has placed reliance on the cases of "Mian Muhammad Afzal v. Province of Punjab and others" (2004 SCMR 1570), "Muhammad Mohsin Ghuman and others v. Government of Punjab through Home Secretary, Lahore and others" (2013 SCMR

85) and “Muhammad Aamir Khan v. Government of Khyber Pakhtunkhwa through Senior Member Board of Revenue, KP and others” (2019 SCMR 1021).

5. Heard.

6. The question that requires determination by this Court is whether the non-application of a general age relaxation for recruitment of the post of Sub-Inspector (Open Merit) advertised by the Punjab Public Service Commission (PPSC) is arbitrary, discriminatory, and unlawful. Appointment of Sub-Inspectors in Punjab Police Department is governed by the Sub-Inspectors and Inspectors (Appointment and Conditions of Service) Rules, 2013. These rules were made by the Provincial Police Officer with the approval of the Provincial Government in exercise of the powers conferred under Article 112 of the Police Order, 2002. These rules provide requisite qualification as well as physical standards and lower and upper age limit for candidates applying for recruitment. The afore-mentioned rules provide following modes of recruitment for the post of Sub-Inspector: -

- (i). Direct/initial recruitment (open merit)
- (ii) Appointment by selection (service quota).
- (iii) By departmental promotion.

The age limit for the post of Sub-Inspector selection for direct/initial recruitment, according to the said rules is 20 to 25 years, whereas the age limit for the in-service quota is 23 to 35 years. Determining the appropriate age for appointment of Sub-Inspector either on open merit or from in-service quota is a policy decision. Such decision is based on the specific and often strenuous requirements of police service, which demands a certain level of physical fitness and agility criteria reasonably associated with a younger age bracket for new entrants. Jurisdiction of the Courts is to apply the law and rules as

they appear on the statute book¹. The Courts are generally cautious in interfering with policy decisions unless they are shown to be patently arbitrary, *mala fide*, or in violation of a statute², none of which has been established in the instant case.

7. Relaxation of the upper age limit for recruitment of civil servants is governed by the Punjab Civil Servants Recruitment (Relaxation of Upper Age Limit) Rules, 1976. These rules have been amended on several occasions to grant general age relaxation to candidates applying for recruitment in different basic pay scales. However, the police force has historically been and continues to be excluded from the application of these general relaxation rules. The very act of excluding the police from such amendments signifies a clear legislative and administrative intent to treat police recruitment as a special case, governed by its own set of standards. The police force is a distinct and disciplined entity with its own service structure and rules, separate from the general civil service. Therefore, the petitioners' reliance on the Punjab Civil Servants Recruitment (Relaxation of Upper Age) Rules, 1976, is fundamentally misplaced. Therefore, the petitioners cannot claim, as a matter of right, the benefit of a relaxation that the rule-makers have deliberately chosen not to extend to the police force. Guidance is found in the case of "Muhammad Mohsin Ghuman and others v. Government of Punjab through Home secretary, Lahore and others" (2013 SCMR 85), wherein the Supreme Court of Pakistan denied upper age limit relaxation for serving police officials who wanted to apply for the posts of Assistant Sub-Inspectors, which were to be filled through direct recruitment. It was held that the special law i.e. the Police Order 2002 and the rules framed thereunder, prevail over the general law i.e. the Punjab Civil Servants Recruitment Rules, 1976 regarding general age relaxation.

¹ See "Muhammad Aamir Khan v. Government of Khyber Pakhtunkhwa through Senior Member Board of Revenue, KP and others" (2019 SCMR 1021).

² See "Mian Muhammad Afzal v. Province of Punjab and others" (2004 SCMR 1570)

8. Adverting now to the petitioners' argument of discrimination, the law on this subject is well-settled. Article 25 of the Constitution of the Islamic Republic of Pakistan, 1973, guarantees equality before the law, but it does not prohibit reasonable classification. The principle of equality is not a principle of absolute similarity. For a classification to be valid, it must satisfy two conditions: (i) it must be founded on an intelligible differentia which distinguishes persons or things that are grouped together from others left out of the group, and (ii) the differentia must have a rational nexus to the object sought to be achieved by the statute or policy in question. Applying this test to the present case, the distinction between candidates applying on "Open Merit" and those applying on "Service Quota" is a clear and intelligible differentia. The two categories cannot be considered "similarly placed." The petitioners are fresh candidates, without any prior experience in the police department. In-service candidates, on the other hand, are already officials of the police force. They have undergone departmental training, possess valuable field experience and have dedicated a number of years to the service. The object of recruitment on open merit through initial recruitment is to induct young talent into the force, whereas the object of the service quota is to provide a channel for vertical mobility and career progression for experienced personnel already serving the department. The different age limits prescribed for these two distinct categories have a rational nexus to these objects. A lower age limit for fresh entrants ensures they are physically and mentally equipped for the rigorous initial training and a long service tenure. Conversely, a higher age limit for in-service candidates is a pragmatic recognition of the fact that they joined the service at a young age in a lower rank and have since gained experience that makes them suitable for promotion to the rank of Sub-Inspector. To treat these two fundamentally different classes as one, would be illogical and would amount to treating unequals as

equals, which itself would be a violation of the principle of equality. Reliance is placed on the cases of “I.A. Sharwani and others v. Government of Pakistan through Secretary, Finance Division, Islamabad and others” (1991 SCMR 1041) and “Gul Zarif Khan and others v. Government of Khyber Pakhtunkhwa through Chief Secretary, Peshawar and others” (2025 SCMR 415).

9. So far as the petitioners’ reference to a five-year age relaxation granted in a previous advertisement (No.31/2024) for service quota posts is concerned, the same is of no avail to their cause. As clarified by the learned Law Officer, that was a one-time dispensation granted by the provincial cabinet for specific reasons, which fact was specifically mentioned in the advertisement. A one-time policy decision or relaxation does not create a vested right for all time to come, nor can it be cited as a binding precedent to demand similar relaxation in a subsequent and different recruitment process, especially for a different category of candidates.

10. For the foregoing reasons, the petitioners have failed to point out any infringement of their fundamental rights or illegality in the impugned advertisement. Consequently, these petitions are found to be devoid of merit and are hereby dismissed.

Office shall transmit a certified copy of this judgment to the respondent-PPSC, forthwith.

(RAHEEL KAMRAN)
JUDGE

Approved for reporting.

JUDGE